

2 Drugs and cosmetics law

Section 9A

Title: Adulterated Drugs and Cosmetics

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 9A

Plain English Summary:

This section explains when a drug or cosmetic is considered adulterated. An Ayurvedic manufacturer must ensure that the product is not contaminated, spoiled, prepared under unhygienic conditions, or mixed with harmful or unsuitable substances. Proper raw-material testing, manufacturing practices, storage, and quality control are necessary to prevent adulteration.

The Exact Legal Text:

A drug or cosmetic shall be deemed to be adulterated if it contains any harmful or toxic substance, if any substance has been mixed with it so as to reduce its quality or strength, if it has been prepared, packed, or stored under insanitary conditions, or if it does not meet the prescribed standards of quality.

Keywords/Triggers:

Adulterated Ayurvedic medicine, contaminated drugs, harmful substances, insanitary manufacturing, drug quality control, raw-material testing, Ayurvedic drug safety, adulteration prevention.

Section 9D

Title: Meaning of Spurious Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 9D

Plain English Summary:

This section explains when a drug is considered spurious or fake. A drug may be spurious if it is sold under the name of another drug, falsely claims to be manufactured by a particular

manufacturer, or contains an incorrect identity. For an Ayurvedic startup, correct labelling, genuine ingredients, authentic manufacturing details, and traceability are essential.

The Exact Legal Text:

A drug shall be deemed to be spurious if it is manufactured under a name which belongs to another drug, if it is an imitation of or resembles another drug in a manner likely to deceive, if it bears the name of a fictitious manufacturer, or if it purports to be the product of a manufacturer of whom it is not truly a product.

Keywords/Triggers:

Spurious Ayurvedic drugs, fake medicines, false manufacturer name, incorrect drug identity, misleading drug labelling, drug authenticity, genuine Ayurvedic products, product traceability.

Section 10

Title: Prohibition of Import of Certain Drugs and Cosmetics

Jurisdiction: India

Category: Standards

Source Citation: Drugs and Cosmetics Act, 1940, Section 10

Plain English Summary:

This section prohibits the import of certain drugs and cosmetics into India when they do not meet the requirements of the law. Imported products must comply with the prescribed standards of quality and must not be misbranded, adulterated, or spurious. For an Ayurvedic startup, this means that imported herbs, ingredients, medicines, or cosmetic products must be checked for legal compliance, quality, authenticity, and proper labelling before they are brought into India.

The Exact Legal Text:

The import into India of any drug or cosmetic which is not of standard quality, or which is misbranded, adulterated, or spurious, or which is prohibited under the provisions of this Act or the rules made thereunder, is prohibited.

Keywords/Triggers:

Import of Ayurvedic drugs, prohibited drug imports, imported herbal ingredients, drug quality standards, misbranded medicines, adulterated medicines, spurious drugs, import compliance.